Sitapuram Power Limited vs Transmission Corporation Of Andhra ... on 19 November, 2010

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

E.P.No. 3 of 2012 in
Appeal No. 8 of 2010

Dated : 27th August, 2012
Present: Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. Rakesh Nath, Technical Member
Hon'ble Mr. Justice P.S. Datta, Judicial Member

Sitapuram Power Ltd. & Anr. ...Petitioner(s)
Versus
Transmission Corpn. of Andhra Pradesh & Ors. .....Respondent(s)

Counsel for the Petitioner (s) : Mr. Sitesh Mukherjee
Mr. Rajiv Yadav
Counsel for the Respondent(s): Mr. A.T. Rao for R.1 & 2

ORDER

We have heard Mr. Sitesh Mukherjee, the learned counsel for the Applicant, who argued at length.

Whatever to say, we have already said in the Judgment, which is under the Appeal before the Hon'ble Supreme Court. Since stay was not granted, the learned counsel for the Applicant seeks for execution of the consequential Orders. We feel that the said prayer before this Tribunal is not maintainable. However we give liberty to the Applicant to approach the Commission to seek for the consequential Orders in consonance with the finding, which has been rendered in our Judgment.

With these observations, the Petition is disposed of. (P.S. Datta) (Rakesh Nath) (Justice M. Karpaga Vinayagam) Judicial Member Technical Member Chairperson